

§ 1037. Issuance of warrant and reports to court. (a) The court may issue a warrant directing the parent, or other person legally responsible for the child's care or with whom he is residing to be brought before the court, when a petition is filed with the court under this article and it appears that (i) the summons cannot be served; or (ii) the summoned person has refused to obey the summons; or (iii) the parent or other person legally responsible for the child's care is likely to leave the jurisdiction; or (iv) a summons, in the court's opinion, would be ineffectual; or (v) the safety of the child is endangered; or (vi) the safety of a parent, person legally responsible for the child's care or with whom he is residing, foster parent or temporary custodian is endangered.

(b) When issuing a warrant under this section, the court may also direct that the child be brought before the court.

(c) In any case involving abuse, the warrant shall be clearly marked on the face thereof "Child Abuse Case". If a warrant is not executed within two court days of its issuance, such fact shall be reported to the court within three court days of its issuance. Rules of court shall provide that reports of unexecuted warrants issued under this article shall be periodically made to the court.

(d) In a proceeding to determine abuse, the warrant shall contain a statement clearly marked on the face thereof, that the proceeding could lead to a proceeding under the social services law for the commitment of guardianship and custody of the child and that the rights of the respondent with respect to said child may be terminated in such proceeding under such law.